A SUMMARY OF THE ENTIRE HILCHOT SHABBAT IN 14 CLASSES

Children and Babies, Instructing a Non-Jew, and Q&A

Class 14 of 14

Series: Laws of Shabbat — a 14-part course

Shiur: 14 of 14 — the final shiur

Topic: Childbirth, Babies and Children on Shabbat; Amirah Le'Akum — Instructing a Non-Jew; Closing Words and Q&A

Recorded: Tiferet Eyal, Hendon — 26 March 2019

Recap

Last time: the five levels of illness, and Muktseh. Tonight: children and babies, then asking a non-Jew, then questions and plans for the coming year.

Part A — Childbirth on Shabbat

When is a woman "in labour"?

A woman in childbirth is **pikuach nefesh**. The Gemara gives three signs she is definitely a *yoledet*: she can **no longer walk** unaided; she begins **bleeding**; she sits on the **birthing stool**. But one must be somewhere safe *by* that point — so add the time needed to get to hospital. General guidance: once contractions are **regular, about every 15–20 minutes**, she has the status of a patient and Shabbat may be broken for anything she needs. (Waters breaking usually indicates that time has come, unless you live next door to the hospital.)

Her psychological needs are paramount

Just as a child locked in a room may be released even by breaking Torah prohibitions, a woman in labour's peace of mind is part of a safe delivery:

- Her **husband** may travel with her if she wants him there, even though he gives no medical care.
- If she wants her **mother**, her mother may be called and may drive to the hospital.

Getting home afterwards

The companion may return home — otherwise people would hesitate to accompany her in the first place. Halacha: only via rabbinic means — e.g. a **non-Jewish taxi**, not driving oneself (more so if children are at home alone). Doctors and Hatzalah may even drive back themselves (partly because they may be needed again).

With a shinui

Unlike other pikuach nefesh, childbirth is a normal occurrence (the Rambam: one in a thousand died in his day). So where it causes no delay, do everything with a **shinui** — e.g. lift the receiver and dial with the weaker hand. In a real emergency, act as fast as possible.

Q: Taxi or drive yourself? — A non-Jewish taxi involves only rabbinic issues (phoning, paying), so prefer it; drive yourself if a taxi would be slow (e.g. Christmas Day).

Ninth-month preparations

From about four to five weeks before the due date, prepare so as to minimise desecration of Shabbat: a **packed bag**; **lights left on** where needed; **exact taxi fare** by the door, the cab pre-arranged; the **urn on**; the **phone left on**. Staying near the hospital for Shabbat in the ninth month is a good idea, but not required (some poskim do require it where possible).

After birth

Period	Status
Days 1–3 (first 72 hours)	Shabbat is broken for her needs even if she says she doesn't need it, if others judge she does (e.g. turning on the heating — honestly for her)
Days 4–7	Whatever **she** asks for is done, even if others think it unnecessary; if she says she doesn't need it, listen to her
Days 8–30	A *choleh she'ein bo sakana* (Level 3): a non-Jew may do anything for her; she may do rabbinic acts with a shinui (unless complications keep her in danger)

Miscarriage after **40 days** of pregnancy gives her the status of a *yoledet* — Shabbat may be broken for her needs; stillbirth certainly so.

Part B — Babies on Shabbat

Baby wipes

Wiping squeezes liquid out of the wipe — *sechita*, which many forbid. **Chacham Ovadia** permits wipes if you **don't squeeze** — wipe gently, taking only surface moisture. Modern wipes can be very wet — take care. (Alternatives: pour water and dry with tissue; wash the baby.)

Warming a bottle

- Stand the bottle in hot water poured into a bowl (a kli sheni) — fine.
- You may even pour from the **urn directly onto the bottle**: *iruy kli rishon* only cooks the outer surface — the plastic, not the milk inside. Make sure the outside is dry (no cold water drops on it).
- Fully **submerging** it in the hot water is fine — *hatmana* applies only to a kli rishon.

Nappy cream

A baby has the status of a *choleh*, so medicine is permitted. The only issue is smoothing: oil is fine; even thick cream (which Ashkenazim avoid) is permitted for Sephardim in **small amounts rubbed in** so that no layer remains.

Cold

Kol cholim etzel tzinah — everyone counts as "ill" when it comes to cold. When it is **truly** cold (the Shulchan Aruch warns against those who rely on this when it's only a little cold), one may instruct a non-Jew outright to switch on the heating — since a very cold person will probably fall ill. With a **baby or elderly person** in the home, the bar is much lower. Q: with no non-Jew available, may a Jew do it? — The Rabbi found no source permitting it unless one is actually ill (then, with a shinui).

Nappies

Opening a nappy's tabs is fine — they're made to be undone (not permanent sewing). But when disposing of it, **don't seal it closed** with the tabs — that's permanent; just put it in a bag.

Bathing a baby

Adults may not bathe in hot water even if heated before Shabbat (as discussed with swimming); a **baby may be bathed** in hot water, provided no new heating is caused (e.g. not opening a hot tap that draws cold water into a heating tank). Water from the urn should be put in a bowl first (a kli sheni) before adding cold water.

Part C — Amirah Le'Akum: Instructing a Non-Jew

Rabbinic, with a hint in the Torah

The Torah says **לֹא תֵעָשֶׂה מְלָאכָה** — "work shall not *be done*" (passive), hinting that work done for you is included; but the prohibition is rabbinic. Three reasons:

1. **Rashi:** he acts as your agent (*shaliach*).
2. **Yeshayahu** (58:13, recited at Shabbat morning Kiddush) — **מִמְצוֹא חֶפְצְךָ וְדַבֵּר דָּבָר**: your **speech** on Shabbat should not be like weekday speech — not business, not football, not giving orders.
3. **Rambam:** otherwise there would be no Shabbat left — shops open with non-Jews running them — and people would end up doing things themselves.

Two millennia ago much of what we avoid was not technically forbidden by the Torah — handling money, trading. People simply felt the **spirit of Shabbat**. As loopholes appeared, Chazal's decrees — Muktseh and Amirah Le'Akum chief among them — preserved that spirit. We are grateful for them.

Two separate issues: instructing, and benefiting

- **Hinting** avoids the problem of *instructing* — but not of **benefiting** from work a non-Jew does **for you**.
- **A completely dark room:** you may not even hint to a non-Jew to switch on the light; if he does it on his own for you, you may not benefit (you should stop him if you can).
- If there is **already some light** (a streetlamp, the corridor light), hinting for more light is fine — the added benefit is minor.
- **Switching off** a light, or turning down the heating — you only benefit indirectly; you may hint. Turning on air-conditioning — a direct benefit; not unless it's unbearable.
- A non-Jewish flatmate who switches on a light **for himself** — you may benefit.
- Q: asking before Shabbat? — Solves the speech issue only; the other two reasons still forbid it.

Further principles

- **Pesik reisha through a non-Jew is permitted:** ask him to open the fridge and bring you a drink, even though the light will come on.
- **Ask for the task, not the method:** asking a cleaner to wash up is fine even if she uses hot water or the dishwasher (she could use cold water); asking a hotel porter to bring something up even if he uses the lift.
- **Shevut deshevut / rabbinic acts** may be asked of a non-Jew for one of three reasons: a **mitzvah**, significant **pain or discomfort**, or great **financial loss**.
- Hotel electronic key cards — opening the door is a rabbinic matter; ask a member of staff where truly needed (e.g. to get into your room to sleep), not for trivial reasons.
- **Lifts** — depends on how each lift works (whether your weight affects the motor); prefer the stairs. A **Shabbat lift** is fine, certainly for the elderly.
- **Communal needs** (e.g. a broken **eruv**) — a non-Jew may even be asked to do a Torah-level act (Ba'al Haltur, cited by the Rema). This leniency is much abused; it doesn't extend to a private Shabbat lunch. For a meal, a non-Jew may be asked to do a rabbinic act (e.g. carry through a karmelit) for what is genuinely needed (the Mishnah Berurah).

Closing Words

A long winter and a wonderful series — a real *zechut* to learn these halachot together. Shabbat comes every week; we grow used to it and forget its intricacies, so a refresher every few years is vital.

But Shabbat cannot be reduced to *mutar* and *assur*. As in the very first shiur: a beautiful **painting** is made of fine details — without them there is no painting — yet fixate on one brushstroke and you lose the whole. The spirit of Shabbat — its feeling, enjoyment, holiness and aura — must be felt as well as kept.

Fourteen lectures only open the door; there is so much more to learn. If everyone now knows *where* the questions are, the series has done its job.

Coming series

- **After Pesach (May–July):** a short series of 7–8 shiurim on **Kashrut**, Tuesday nights.
- **After Sukkot, for a full year:** the Rambam's **Thirteen Principles of Faith** — each principle, the disagreements about it, and what it means for our lives.

Leave your details with Barbara for weekly reminders.

Questions from the Floor

- **May a non-Jewish helper do laundry on Shabbat that you won't use on Shabbat?** — You may not instruct it, even before Shabbat; it depends on how she is employed (a job-based arrangement differs from paid-by-the-hour) — a complicated topic.
- **A door sensor with nobody around?** — If you must get through, it's a pesik reisha one doesn't intend; discuss specifics.
- **Owning a business that trades on Shabbat?** — With a non-Jewish partner there are arrangements (a contract that you take no Shabbat profits), but they are very complex — consult a rabbi.
- **Passing a baby during *niddah*?** — Under about six months, put the baby down for the other parent to pick up; once older and moving on its own, it may go from one to the other.

Summary

- **Labour:** regular contractions (about every 15–20 min) — pikuach nefesh; meet her emotional needs; use a shinui where it causes no delay; prepare in the ninth month; companions may return via a non-Jewish taxi. Days 1–3, 4–7, 8–30 rules; miscarriage after 40 days.
- **Babies:** wipes gently without squeezing; warm bottles in or under urn water; nappy cream rubbed in; heating via a non-Jew (low threshold for babies); don't seal used nappies; babies may be bathed in pre-heated water.
- **Non-Jews:** no instructing and no direct benefit; hinting helps only where benefit is minor; pesik reisha via a non-Jew is fine; ask for tasks, not methods; rabbinic acts for a mitzvah, pain or financial loss.
- Above all, the **spirit of Shabbat**.

Chazak u'Baruch — B'Ezrat Hashem

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